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THE CONSTITUTION AS A FOUNDING INSCRIPTION: WHAT KIND OF SOCIAL OBJECT A NATIONAL CONSTITUTION IS, AND HOW IT INSTITUTIONALIZES THE HUMAN CONDITION ACROSS THE WORLD'S LEGAL TRADITIONS

LA CONSTITUCIÓN COMO INSCRIPCIÓN FUNDADORA: QUÉ TIPO DE OBJETO SOCIAL ES UNA CONSTITUCIÓN NACIONAL Y CÓMO INSTITUCIONALIZA LA CONDICIÓN HUMANA A TRAVÉS DE LAS TRADICIONES JURÍDICAS DEL MUNDO

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ABSTRACT

This article brings together two questions usually kept apart: the anthropological-philosophical question of the human condition and the ontological-legal question of what kind of social object a national constitution is. The thesis merges both: a constitution is a founding inscription—a sovereign, recursive, generative and maximally unamendable social object—operating as the mechanism through which a political community stabilizes its answers to the human condition. The framework integrates Ferraris's New Realism, Bunge's and Romero's systemic materialism, Glenn's theory of legal traditions as transmitted normative information, Todorov's theory of alterity, and Anderson's and De Botton's functional reading of religion. The thesis is tested against constitutional orders from every continent and every major legal tradition—civil, common, chthonic, Talmudic, Islamic, Hindu, East Asian and African—drawing on the Comparative Constitutions Project.

Keywords: social object; founding inscription; legal traditions; unamendability; comparative constitutionalism.

RESUMEN

Este artículo articula dos preguntas que la teoría suele tratar por separado: la pregunta antropológico-filosófica por la condición humana y la pregunta ontológico-jurídica por el tipo de objeto social que es una constitución nacional. La tesis funde ambas: la constitución es una inscripción fundadora —un objeto social soberano, recursivo, generador y máximamente in-enmendable— que opera como el mecanismo mediante el cual una comunidad política estabiliza sus respuestas a la condición humana. El marco integra el Nuevo Realismo de Ferraris, el materialismo sistémico de Bunge y Romero, la teoría de las tradiciones jurídicas de Glenn como información normativa transmitida, la teoría de la alteridad de Todorov y la lectura funcional de la religión de Anderson y De Botton. La tesis se contrasta con órdenes constitucionales de todos los continentes y de todas las grandes tradiciones jurídicas: civil, common law, ctónica, talmúdica, islámica, hindú, asiático-oriental y africana.

Palabras clave: objeto social; inscripción fundadora; tradiciones jurídicas; in-enmendabilidad; constitucionalismo comparado.

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SUMARIO

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Note on comparative-law relevance. *This study is comparative in both object and method. It develops a functional-ontological category—the founding inscription—and tests it against constitutional orders belonging to every major legal tradition on every continent: the civil-law and common-law traditions (Germany, France, Italy, the United States, the United Kingdom), the chthonic tradition (Australia, New Zealand, Canada, the Andean states), the Talmudic tradition (Israel), the Islamic tradition (Saudi Arabia, Iran, Egypt), the Hindu tradition (India), the East Asian tradition (Japan, China), the socialist tradition and its afterlife (Russia), and African constitutionalism (South Africa, Kenya, Ethiopia). Functions rather than labels, and constitutional practice rather than text alone, are the objects of comparison throughout.*

1. RESEARCH QUESTION AND THESIS

Two interrogations, raised in earlier work along this line of research, converge here into one. The first inquired into the structures that articulate the human condition and argued that ontology (being), sociology (collective organization) and anthropology (the production of symbols) co-determine one another in the effort to make existence meaningful in the face of secularization and digitalization. The second asked, in an ontological key, what kind of social object a national constitution is. The present article fuses the two into a single research question.

Research question. What kind of social object is a national constitution, and how—precisely as such an object—does it institutionalize a political community's answers to the invariants of the human condition?

The interest in merging the two questions is not merely expository. If a constitution is a social object—and not a physical text or a private idea—then its mode of existence (ontology) determines the way it operates upon collective life (sociology) and its capacity to bear meaning (anthropology). To show what kind of object it is amounts, therefore, to showing how a community inscribes and perpetuates its solutions to persistent human problems. This displaces the classical debate between normativism and realism: the point is not whether the constitution is a norm or a fact, but that it is a particular kind of artifact whose existence is neither purely material nor purely ideal, and whose durability is precisely

what a political community needs in order to transmit, across generations, its considered responses to mortality, fragility, the arrogance of power, and the presence of the other.

Thesis. A national constitution is a founding inscription: a sovereign social object that (i) obeys the general rule social object = inscribed act; (ii) is recursive, for it institutes the very authority that could amend it; (iii) is generative, for it produces further social objects (laws, organs, rights); and (iv) is maximally unamendable within the social order. Precisely because it gathers these features, the constitution operates as the mechanism that stabilizes the community's answers to the human condition: mortality, fragility, the arrogance of power, and the need to recognize the other all find in it their durable record.

The present, expanded version of the argument adds a second, explicitly comparative claim. If the thesis is sound, it cannot hold only for the Western constitutional family from which its philosophical vocabulary happens to derive. A theory of the constitution as founding inscription must be tested against the full diversity of the world's legal traditions—chthonic, Talmudic, Islamic, Hindu, East Asian and African, alongside the civil and common law—because each of those traditions organizes the relation between foundation, writing and authority in a different way. Some inscribe the founding act in a single enacted document; some distribute it across statutes, precedents and conventions; some locate it in a revealed text that no human assembly enacted; some fuse it with the land itself. If the category of founding inscription can accommodate this diversity without flattening it—if it can explain both what these orders share and how they differ—then it earns its place as a genuinely comparative concept rather than a Western concept in comparative disguise. Section 5 undertakes that test continent by continent.

The argument proceeds in four analytical registers—ontological, epistemological, sociological and anthropological—which are kept distinct throughout and integrated only at the level of interpretation, in keeping with the methodological rule that these levels must never be collapsed into one another. The claim is not that these registers describe separate objects, but that a single object, the constitution, can be truthfully described from each of them without any one description exhausting it. A final methodological remark is owed to the comparative method itself: following the functionalist canon of comparative public law, what is compared below is never the label a legal institution bears but the task it discharges in its order, and never the constitutional text alone but the text together with the practice that gives it force.

2. CONCEPTUAL FRAMEWORK

The theoretical scaffolding integrates five research programs without conflating their analytical levels. Each contributes a distinct conceptual instrument: an ontology of the social object (Ferraris), a materialist account of society as a system and of ideologies as multidimensional systems (Bunge, Romero), a theory of legal traditions as transmitted normative information (Glenn), an anthropology of alterity (Todorov), and an account of the imagined community and of the functional inheritance of religion (Anderson, De Botton). None of these programs was designed for constitutional theory; the wager of this article is that, taken together and kept distinct, they furnish the vocabulary in which the nature of the constitution can be both stated and tested across traditions.

2.1. *The social object in New Realism (Ferraris)*

Ferraris's New Realism begins as a polemic against the postmodern axiom that there are no facts, only interpretations. Against it, Ferraris restores the primacy of ontology over epistemology: the world exists and resists prior to any conceptual scheme. The mark of this resistance he calls unamendability (*inemendabilità*): the real is that which cannot be corrected by merely changing our beliefs about it. Fire burns whether or not one holds the theory that it does; the mountain does not move because cartographers redraw the map. Unamendability is thus a negative criterion—Ferraris speaks of a negative realism—which identifies reality not by what we can say about it but by the way it says no to

us. This criterion will prove decisive for constitutional theory, because constitutions, as will be seen, deliberately engineer zones of the social that say no even to supermajorities.¹

On this realist basis Ferraris distinguishes three classes of objects. Physical objects (mountains, rivers, bodies) exist in space and time independently of subjects. Ideal objects (numbers, theorems, relations) exist outside space and time and are discovered rather than made. Social objects (promises, money, marriages, statutes, constitutions) occupy an intermediate and philosophically delicate position: they depend on subjects—there would be no money in a world without minds—yet they are independent of any single subject: my private disbelief in the euro does not abolish my debts. For this third class Ferraris formulates a constitutive rule.

Social object = Inscribed act

A social object comes into being when an act—a promise, a purchase, an enactment—is inscribed on a support legible by at least two persons. The support may be paper, stone, magnetic memory or ritualized collective memory; what matters is that the act leaves a trace that outlasts the moment of its performance and can be invoked against the parties later. Society is thus founded on the record—durable, accumulable, opposable—rather than on communication, which is ephemeral. This is Ferraris's theory of documentality: institutions are not congealed communication but accumulated documents, and the strength of an institution is a function of the strength of its inscriptions.

Documentality carries with it a discipline that Ferraris names *ichnology*, the doctrine of the trace. Traces are ordered in a hierarchy of increasing social power: the mere trace (a mark without intention or addressee), the record (a trace preserved and retrievable), the inscription (a record endowed with normative value, creating obligations), and—this article adds—the founding inscription, the inscription on which all others in an order depend. Two further Ferrarisan theses complete the toolkit. First, weak textualism: social objects live by their inscriptions—in this precise sense nothing social exists outside the text—but it does not follow that everything is text; the bodies, territories and lives that documents govern are not documents. Weak textualism thus holds the middle ground between naive realism about institutions and the strong textualism that dissolves them into interpretation. Second, the diagnosis of the documedia revolution: the web is not primarily a communication apparatus but a recording apparatus, an explosion of inscription that is relocating the social record from public archives to private platforms—a displacement whose constitutional significance is taken up in the critical discussion (§11).

The distinctiveness of documentality stands out against the best-known rival account of social ontology, Searle's theory of collective intentionality, on which institutional facts exist because we collectively accept that X counts as Y in context C. Ferraris's objection is empirical as much as conceptual: collective acceptance is too thin, too volatile and too invisible to carry the weight of institutions. No one has ever seen a collective intention; what one finds, wherever an institution is found, are registers, archives, signatures, seals—inscriptions. Money does not exist because everyone intends it together, but because a system of records makes each note, account and debt traceable and opposable; and institutions routinely survive the massive withdrawal of belief (as façade constitutions and occupied states show) so long as their documental machinery keeps running. For constitutional theory the difference matters: on the acceptance view, a constitution exists in the shifting consensus of its subjects; on the documental view, it exists in its inscription and in the practices of recording that surround it—which is why it can outlive generations of disbelievers and why the struggle for the constitution is always, concretely, a struggle over documents: texts, gazettes, judgments, archives.²

Finally, social objects vary in what may be called hardness: the cost of modifying them. A dinner reservation is soft; a contract is harder; a treaty harder still. The hypothesis defended here is that the

¹ On New Realism, negative realism and unamendability (*inemendabilità*), M. Ferraris, *Manifesto of New Realism* (Albany: State University of New York Press, 2014) [orig. *Manifesto del nuovo realismo*, Roma-Bari: Laterza, 2012]; on documentality, the rule social object = inscribed act and the *ichnology* of the trace, M. Ferraris, *Documentality: Why It Is Necessary to Leave Traces* (New York: Fordham University Press, 2013) [orig. *Documentalità. Perché è necessario lasciar tracce*, Roma-Bari: Laterza, 2009]; on the documedia revolution, M. Ferraris, *Mobilizzazione totale* [Total Mobilization] (Roma-Bari: Laterza, 2015).

² J. R. Searle, *The Construction of Social Reality* (New York: Free Press, 1995), on institutional facts arising by collective imposition of status functions (X counts as Y in context C).

constitution occupies the extreme of that scale—that it is the social object deliberately engineered to be maximally unamendable within its order—and that this position on the scale of hardness is not an accident of legal technique but the very function that makes foundation possible.

2.2. Society as a material system and the analysis of ideologies (Bunge and Romero)

If Ferraris supplies the ontology of the object, systemic materialism supplies the ontology of the system in which the object operates. Bunge conceives society as a concrete material system—not a set of ideas, not a text, not an aggregate of individuals—describable by four factors, often summarized as the CESM model: Composition (the members of the system), Environment (the items that surround it and interact with it), Structure (the set of relations among members—the endostructure—and between members and environment—the exostructure), and Mechanism (the collection of processes that make the system behave as it does). A society, further, articulates four major subsystems: the biological (kinship, reproduction, health), the economic (production and exchange), the political (the management of collective action and coercion), and the cultural (the production and circulation of meaning). No subsystem is reducible to another; each interacts with all.³

The decisive category for constitutional theory is mechanism. What distinguishes a system from a mere aggregate is that the former possesses processes that make it act as a whole; a heap of persons on a territory is not yet a State. What ignites the political mechanism, at its supreme level, is the constitution: it determines who commands, how command is transmitted, limited and revoked, and how the political subsystem regulates the others. This furnishes the sociological translation of the ontological thesis. If the constitution is the founding inscription, it is because it is the mechanism that converts composition into system—that turns a population that merely coexists into an ordered whole endowed with organs, competences and a capacity for collective action. The constitution, on this reading, is not a description of the State superimposed upon it; it is the operative rule that switches the State on. And the converse holds: where the inscription exists but the mechanism it prescribes does not run—where text and machinery are decoupled—systemic materialism gives us the exact diagnosis of the façade constitution, developed in §11.

A second Bungean category completes the sociological toolkit: emergence. A system possesses properties that none of its components possesses—properties that come into being with the structure and vanish with it. Sovereignty, the rule of law, citizenship, constitutional identity are emergent in exactly this sense: no individual carries a fragment of sovereignty as a personal attribute; the property exists only at the level of the constituted whole. Emergentist materialism thus steers between the two classical errors of social theory—the individualism that dissolves the State into an aggregate of behaviors, and the holism that hypostatizes it into a substance floating above its members. The State is real, but its reality is that of a structured system of real persons; and the constitution, as the mechanism that structures it, is precisely the operator of emergence: the inscription whose observance makes properties like legality and citizenship appear. This, incidentally, dissolves a false dilemma that haunts constitutional theory—whether the constitution 'creates' the people or the people 'creates' the constitution. In systemic terms both are true at different levels: the population (composition) pre-exists; the people as constituted collective subject (system) emerges with the mechanism the founding inscription switches on.

Romero extends the systemic approach to the analysis of ideologies, and this extension matters here because constitutions are never ideologically innocent. On the systemic view, an ideology is not a simple set of beliefs but a multidimensional system articulating at least: a worldview (a picture of what exists and what matters), a community (the group whose identity the ideology organizes), power relations (who is entitled to command whom), knowledge claims (what counts as knowing), institutional mechanisms (the organs through which the ideology operates), legitimacy narratives, symbolic structures, and

³ On the CESM model (composition, environment, structure, mechanism) and society as a concrete material system, M. Bunge, *Treatise on Basic Philosophy*, vol. 4, *Ontology II: A World of Systems* (Dordrecht: Reidel, 1979); M. Bunge, *Social Science under Debate: A Philosophical Perspective* (Toronto: University of Toronto Press, 1998) [Spanish ed. *Sistemas sociales y filosofía* [Social Systems and Philosophy], Buenos Aires: Sudamericana, 1995].

normative objectives. Methodologically, this imposes a discipline observed throughout this article: wherever ideology appears—and every preamble is, among other things, an ideological artifact—its components must be identified and separated from empirical evidence and from constitutional doctrine, rather than treated as a homogeneous mass of opinion. Constitutional language must never be presumed ideologically neutral; but neither may the ideological dimension be allowed to swallow the ontological, sociological and anthropological ones.⁴

2.3. Legal traditions as transmitted normative information (Glenn)

To the ontology of the object and the materialism of the system a third instrument must be added: an account of how constitutional orders relate to the deep legal traditions from which they draw and which they transmit. Glenn's is the most developed such account in comparative law, and it is built, remarkably, on the same conceptual material as Ferraris's ontology: information and its transmission. A tradition, for Glenn, is neither mere repetitive behavior nor the dead weight of the past; it is normative information transmitted over time. The prevailing Western dichotomy between tradition and modernity he diagnoses as itself a tradition—a tradition of modernity, characterized above all by the persistent denial of its own long history.⁵

Glenn's evidence for the informational concept is drawn from the traditions themselves, and it is worth retaining because it will structure the comparative tour of Section 5. Hindu law distinguishes the *Smṛiti*, that which was heard—revelation—from the *Śruti*, that which is remembered; tradition is here explicitly that which was heard and is remembered, that is, captured and transmitted information. In Islamic law, the sayings and deeds of the Prophet are the *ḥadīth*, the word usually translated as tradition, derived from a root meaning the new: tradition is the content of a teaching, information again. Common lawyers, for their part, would agree with Simpson that law is essentially something that has come down to us from the past—the common law as an information base accumulated over space and time. From an information-age standpoint the conclusion is direct: tradition is information, as distinct from its transmission and from our reactions to it, and the study of tradition is the study of the content and flow of large bodies of normative information over time and space.⁶

How does a tradition operate? Glenn describes a looping, reflexive process in three steps. First, capture: at a point of origination—precise, as in a revelation, or imprecise, as in an early accumulation of cases—information is captured that would otherwise be lost. There was a time of Dreaming for the chthonic peoples of Australia; there was Moses; there was Muhammad; there was the writing down of the Roman dispute-settlement process in the Twelve Tables; there were the writs of Henry II; there were the anonymous hearers of the Hindu revelation. Second, application: the captured information is used, argued over, applied to new cases. Third, recapture: the applications are themselves captured and added to the information base, which grows far beyond the original deposit. Great legal traditions are precisely such masses of recaptured normative information, together with explicit or implicit rules for their own perpetuation and change—of which Hart's secondary rules are, Glenn observes, one particular instantiation of a much wider phenomenon. A tradition also requires what Eliot called *pastness*: an imprecise but real depth of time that converts raw data into tradition; the instant tradition is impossible, and young traditions are more vulnerable than ancient ones.⁷

The informational concept also explains what happens when transmission fails—an analysis with direct constitutional consequences. Glenn distinguishes three fates of an interrupted tradition. The information may be irretrievably lost: we know a language and an unwritten law existed, but nothing recoverable remains. It may be preserved but unused—buried, like the *Digest of Justinian*, which largely ceased to

⁴ On the systemic analysis of ideologies as multidimensional systems, G. E. Romero, *Materialismo sistémico* [Systemic Materialism] (Pamplona: Prensa Laetoli, 2015).

⁵ On legal traditions as transmitted normative information and the capture–application–recapture loop, H. P. Glenn, *Legal Traditions of the World: Sustainable Diversity in Law*, 5th ed. (Oxford: Oxford University Press, 2014); H. P. Glenn, 'A Concept of Legal Tradition', *Queen's Law Journal*, 34 (2008) 427; H. P. Glenn, 'Are Legal Traditions Incommensurable?', *American Journal of Comparative Law*, 49 (2001) 133.

⁶ A. W. B. Simpson, *Invitation to Law* (Oxford: Blackwell, 1988), on the common law as customary, practice-first law.

⁷ H. L. A. Hart, *The Concept of Law* (Oxford: Oxford University Press, 1961), on the rule of recognition as the ultimate, practice-based criterion by which officials identify the law.

be applied from the fifth to the twelfth century, only to be rediscovered and to refound the entire civil-law tradition; or like Hebrew, which approached the condition of a dead language and was revived. Or it may survive in attenuated adherence, awaiting recapture. The lesson is that traditions, like the social objects they carry, can be dormant without being dead: so long as the information base is preserved on some support, revival is possible; where capture itself is destroyed, it is not. This is the exact informational analogue of the dormant constitution of §11, and it is also—as §5.2 will show painfully—the doctrine that decided the Yorta Yorta case: a court treating interrupted transmission as extinction of the tradition's legal force.

Two further features of Glenn's concept are decisive for the constitutional thesis. The first is inclusiveness. Because traditions transmit information rather than commanding through hierarchical dominance, the concept of legal tradition allows non-state law to count as law—the chthonic, Talmudic, Islamic and Hindu traditions draw no sharp line between law and the rest of normative life, and need none—while also including state law itself, which appears as the instantiation of a particular tradition of positive law running back through Hart and Kelsen to Austin, Bentham and Hobbes. It is therefore proper to speak of national legal traditions; and, Glenn argues, only the normative tradition of states—never the merely descriptive theory of them—can justify states, which today stand profoundly in need of justification. The second feature is reconciliation. National legal systems, conceived as brute facts, are notoriously irreconcilable—each claims supremacy over its community, and the discipline of the conflict of laws manages the collision by localizing relations in one territory, producing a winner and a loser. Traditions, by contrast, being information, can be weighed, combined and reconciled; their coexistence calls for a conciliatory, multivalent logic that can deal with a continuum of possible solutions rather than a series of binary choices. Glenn's examples are instructive: the Supreme Court of Canada accepting chthonic legal tradition as law in *Calder*, and enforcing a contract for a Jewish religious divorce in *Bruker v. Marcovitz*—state courts reconciling, rather than subordinating, distinct traditions in the context of particular cases, implementing what Tully calls a principle of mutual recognition.⁸⁹

The junction with the founding-inscription thesis can now be stated precisely. A constitution is at once an act (Ferraris) and the crystallization of one or more traditions in Glenn's sense: the point at which transmitted normative information is captured in a supreme, durable support and made available for recapture by future interpreters. Constitution-making is capture; adjudication and amendment are application; doctrine, precedent and constitutional culture are recapture. And because traditions are inclusive and reconcilable, a single founding inscription can hold together several traditions at once—liberal rights beside indigenous cosmovision, civil-law codification beside religious law—in a multivalent rather than a binary logic. Whether this claim survives contact with the world's actual legal traditions is the question Section 5 puts to the test.

2.4. The three axes of alterity (Todorov)

Todorov shows, starting from the conquest of America, that the form of a political order depends on how the other is recognized—or denied. His analysis of the encounter between Europeans and Mesoamericans yields a typology that has become canonical: the relation to the other unfolds along three distinct axes, which must not be conflated. The axiological axis concerns value judgment: the other is good or bad, my equal or my inferior. The praxeological axis concerns action: I may embrace the other's values (assimilating myself), impose my own image on the other (assimilating the other), or remain in indifference. The epistemic axis concerns knowledge: I may know or ignore the other's identity, along a continuum from complete ignorance to full recognition. Todorov's disquieting finding is that these axes are independent: Cortés knew the Aztec world far better than his predecessors and used that

⁸ On the hierarchical structure of validity and the presupposed basic norm (Grundnorm), H. Kelsen, *Pure Theory of Law*, trans. M. Knight (Berkeley: University of California Press, 1967) [German orig. *Reine Rechtslehre*, 2nd ed., Wien: Deuticke, 1960].

⁹ J. Tully, *Strange Multiplicity: Constitutionalism in an Age of Diversity* (Cambridge: Cambridge University Press, 1995), on constitutionalism as intercultural dialogue governed by mutual recognition, continuity and consent.

knowledge to destroy it, while Las Casas loved the Indians he barely understood. Knowledge without recognition of equality, and love without knowledge, are both failures of alterity.¹⁰

Beneath the three axes, Todorov's deeper theme is communication: the conquest was decided, he argues, as much by regimes of signs as by steel. Cortés's first acts were acts of information—seeking interpreters, gathering intelligence, manipulating messages—where Moctezuma's world communicated primarily with the cosmos: ritual, divination, the calendar, a semiotics addressed to the gods rather than to the improvising enemy. Two documental regimes met, and the one organized for flexible, addressee-oriented inscription prevailed over the one organized for cosmic reiteration. The constitutional lesson is sobering and current: political orders are also regimes of communication, and their foundations encode a preferred addressee—God, the ancestors, the nation, humanity. A founding inscription that cannot hear certain others (because their signs, languages or supports are illegible to it) will wrong them however generous its abstract clauses; hence the epistemic weight, noted below, of constitutions that admit the other's own language into the supreme record.

For constitutional theory the typology does double work. Negatively, it explains what the founding inscriptions of homogeneous nation-states omitted: the other—indigenous, religious, linguistic—was for centuries constitutionally invisible, neither valued, nor engaged, nor known. Positively, it supplies the measure of the pluralist and intercultural clauses examined in §§4.4 and 5: a constitution recognizes the other in Todorov's full sense only when it affirms the other's equal value (axiological), organizes coexistence rather than assimilation (praxeological), and inscribes the other's own categories, in the other's own words (epistemic). The Bolivian constitution inscribing *suma qamaña* in Aymara, or the New Zealand order carrying the Māori text of the Treaty of Waitangi, are epistemic recognition in this precise sense: the other appears in the founding inscription not translated into the majority's vocabulary but speaking its own.

2.5. Imagined communities and the functional inheritance of religion (Anderson; De Botton)

Anderson describes the nation as an imagined political community—imagined because the members of even the smallest nation will never know most of their fellow-members, yet in the mind of each lives the image of their communion. What made this imagining possible, on his account, was a transformation in the technology of inscription: print capitalism. The novel and the newspaper created the experience of simultaneity—thousands of strangers reading the same words on the same morning—and standardized vernaculars created publics; later, the census, the map and the museum taught colonial and postcolonial states to imagine their own populations, territories and pasts. The nation, in short, is a community produced and sustained by shared media of inscription. Anderson's thesis is thus, *avant la lettre*, a documental theory of the political community, and it dovetails exactly with Ferraris: if the nation is imagined through inscription, the constitution is the supreme inscription through which it imagines itself as a legal order.¹¹

Anderson's typology of nationalisms also travels well into constitutional comparison. Creole nationalism—the pioneer form, born among American functionaries and printmen whose careers and gazettes traced the colonial unit—produced the first wave of enacted founding inscriptions outside Europe; linguistic-popular nationalism in nineteenth-century Europe wrote the vernacular into foundation, making language clauses a constitutional genre; official nationalism—empires nationalizing themselves from above—anticipated the top-down, tutelary constitutions of modernizing autocracies; and the last wave, the nationalisms of decolonization, inherited both the colonial map and the modular constitutional form, producing founding inscriptions for communities the census and the map had partly invented. Each type of imagining, in short, has its characteristic mode of inscription—a correspondence §9 will exploit.

¹⁰ T. Todorov, *The Conquest of America: The Question of the Other*, trans. R. Howard (New York: Harper & Row, 1984) [French orig. *La conquête de l'Amérique: La question de l'autre*, Paris: Seuil, 1982], on the axiological, praxeological and epistemic axes of alterity.

¹¹ B. Anderson, *Imagined Communities: Reflections on the Origin and Spread of Nationalism*, rev. ed. (London: Verso, 2006) [Spanish ed. *Comunidades imaginadas*, México: Fondo de Cultura Económica, 1993], on the nation as an imagined community produced through print capitalism, the census, the map and the museum.

De Botton adds the functional inventory that secularization left behind. Religions, whatever the truth of their doctrines, administered a set of functions no society has ceased to need: stable frameworks of shared value against the privatization of expectations; rites of passage that process the great transitions of life; costly signals of belonging that sustain cooperation among strangers; calendars and festivals that synchronize collective emotion; and the collective processing of grief and mortality. Modern institutions, he observes, train specialists but do not teach one how to live; secular communities must therefore reinvent, not merely abandon, the functions of the religious. The constitutional relevance is direct and will be developed in §9: preambles, oaths, anthems, national days and constitutional patriotism are the secular reinvention of precisely these functions, and the founding inscription is their institutional carrier. Where Anderson explains how a community imagines itself through inscription, De Botton explains what the community needs its supreme inscription to do for it: to house meaning, memory and mourning in a durable public form.¹²

3. HISTORICAL BACKGROUND: FROM COSMOLOGICAL FOUNDATION TO SECULAR INSCRIPTION

The modern constitutional form inherits a millenary function: to fix in writing the act that founds and orders a community. Long before the liberal revolutions, communities inscribed their foundations—in law codes set up in public space, in covenants, in the transmission of revealed teaching, in the ritualized memory of unwritten peoples. What the eighteenth century invented was not the founding inscription as such, but a particular species of it: the enacted, single-document, self-consciously supreme constitution of a sovereign people. As the comparatist literature emphasizes, the modern concept of constitution crystallizes with the American and French revolutions: a written, rational, systematic code in which the fundamental political principles of an organized community regulate the powers of the State, emanating from a constituent power and modifiable only through its own amendment procedure—the famous art. 16 of the 1789 Declaration making *garantie des droits* and separation of powers the very definition of having a constitution.¹³

In the Mesoamerican world, by contrast, the subject was subordinated to rite and calendar—existence was defined by participation in a collective sacred order rather than by individual interiority, as Todorov's reconstruction of the pre-conquest world shows. Liberal constitutionalism inverts that hierarchy and makes the rights-bearing individual the foundation. Yet the oscillation between the collective-ritual pole and the individual pole does not disappear from constitutional history; it reappears, transformed, in the twenty-first-century Andean constitutions, which reintroduce a communal subject in relation to the cosmos, and, as Section 5 will show, it was never absent from the chthonic, Talmudic, Islamic and Hindu legal traditions, for which the community under its law precedes and exceeds the individual.

The historical transition most relevant to the thesis is secularization: the passage from expressly sacred foundations to foundations that either preserve the invocation of the divine as a symbol or replace it with secular principles. In both cases the act of founding inscription persists; only what is inscribed changes. Read through Glenn, this is not a rupture but a recapture: the information transmitted by the religious tradition of foundation—the solemn act by which a community binds itself before something that exceeds it—is captured anew in a secular support, whether as a residual invocation ('before God and men') or as a purely civic formula ('We the People'). Read through Anderson, the same transition appears as a change in the medium of imagination: the sacred community of the universal religions, imagined through sacred script and liturgical language, gives way to the nation, imagined through print vernaculars—and the constitution is the legal precipitate of that new imagination. The constitutional preamble is the site where this recapture is performed and made visible, which is why the comparative analysis begins there.

¹² A. de Botton, *Religion for Atheists: A Non-Believer's Guide to the Uses of Religion* (London: Hamish Hamilton, 2012) [Spanish ed. *Religión para ateos*, Barcelona: RBA, 2012], on the residual social functions inherited from religion.

¹³ L. Pegoraro and A. Rinella, *Fuentes del derecho comparado* [Sources of Comparative Law] (Buenos Aires: Editorial Astrea, 2011) [Spanish translation of *Fonti del diritto comparato*, Padova: Cedam, 2000], citing R. L. Blanco Valdés, on the modern, revolutionary concept of the written constitution.

One further historical observation prepares the comparative tour of Section 5. The diffusion of the enacted single-document constitution across the globe in successive waves—post-independence America, post-1918 and post-1945 Europe and Asia, decolonized Africa, post-1989 Eurasia—did not erase the older legal traditions of the receiving societies. It superimposed a new species of founding inscription upon traditions that already possessed their own: the Dreaming, the Torah, the Qur'an and Sunna, the Sruti and Smriti, the accumulated common law, the customary law of African communities. The constitutional history of most of the world is therefore the history of the relations—of subordination, coexistence, or reconciliation—between the enacted inscription and the inherited ones. That is precisely the terrain on which Glenn's conciliatory, multivalent logic either proves itself or fails.

The mechanics of this diffusion deserve a word, because they exhibit the documental logic at planetary scale. Constitutions travel as texts: the comparative literature on legal transplants and constitutional borrowing has documented the migration of formulas—presidentialism from Philadelphia across Latin America; the Kelsenian court from interwar Austria across postwar Europe, and thence, with the German catalogue of rights and the proportionality method, across post-authoritarian and post-communist orders; the Westminster package across the decolonized Commonwealth; the eternity clause itself, from Germany outward, and the basic-structure doctrine, from India across South Asia and East Africa. Each transplant is, in Glenn's terms, an act of recapture across traditions: normative information captured in one order is copied into the founding inscription of another, where it enters a different loop of application and acquires, often, a different meaning. The Comparative Constitutions Project has made this circulation measurable—similarity of texts, timing of adoptions, survival rates—and its findings underwrite the methodological warning that recurs throughout this article: because texts travel more easily than mechanisms, textual convergence systematically overstates real convergence, and the comparatist must always ask what the borrowed inscription actually switches on in its new home.¹⁴

4. COMPARATIVE ANALYSIS: THE FOUNDING INSCRIPTION IN THE TEXTS

This section submits the thesis to the texts, with direct examples. Each feature of the postulated social object is documented with concrete constitutional provisions, cited by article and available through the Comparative Constitutions Project / Constitute. The method is functional: what is compared is not the label a provision bears but the task it performs in the constitutional order.

4.1. *The act of self-institution (the rule of the record)*

The United States preamble literally executes the formula social object = inscribed act: a collective subject constitutes itself in the very act of inscribing its law.

*"We the People of the United States, in Order to form a more perfect Union [...] do ordain and establish this Constitution for the United States of America."*¹⁵

The South African Constitution of 1996 makes explicit, in addition, the supreme character of the object that the act inscribes—that is, its primacy over all other social objects of the order:

*"We, the people of South Africa [...] adopt this Constitution as the supreme law of the Republic so as to [...] heal the divisions of the past and establish a society based on democratic values, social justice and fundamental human rights."*¹⁶

Both texts make the recursive loop visible: the 'people' that ordains and establishes does not fully pre-exist the act but is instituted in it. There is no prior higher norm; the inscription confers authority upon itself. This self-grounding is proper to the founding inscription and to nothing below it: a statute presupposes the constitution that authorizes it, but the constitution presupposes only the act by which it posits itself. The circularity is not a logical defect but the ontological signature of foundation. It also

¹⁴ A. Watson, *Legal Transplants: An Approach to Comparative Law*, 2nd ed. (Athens, GA: University of Georgia Press, 1993). On measurable circulation, survival and timing, Z. Elkins, T. Ginsburg and J. Melton, *The Endurance of National Constitutions* (Cambridge: Cambridge University Press, 2009).

¹⁵ Constitution of the United States (1787), Preamble.

¹⁶ Constitution of the Republic of South Africa (1996), Preamble.

identifies, in advance, the theoretical pressure point that the Islamic tradition will exert on the thesis in §5.4: where the founding inscription is held to be revealed rather than enacted, the recursive loop is broken from above, and the theory must say how.

4.2. Social unamendability: eternity clauses

If social objects vary in 'hardness'—in the cost of modifying them—the constitution reaches the maximum degree through material limits on its own reform. The paradigmatic case is the German eternity clause, which withdraws from all revision both human dignity (art. 1) and the principles of art. 20:

*"Amendments to this Basic Law affecting the division of the Federation into Länder, their participation on principle in the legislative process, or the principles laid down in Articles 1 and 20 shall be inadmissible."*¹⁷

Dignity so shielded is stated as an ontological axiom of the order: 'Die Würde des Menschen ist unantastbar'—'human dignity is inviolable' (art. 1(1)). France and Italy protect the republican form in an analogous way:

*"La forme républicaine du Gouvernement ne peut faire l'objet d'une révision."*¹⁸

*"La forma repubblicana non può essere oggetto di revisione costituzionale."*¹⁹

Brazil elevates to entrenched clauses (art. 60, §4) the federative form, the direct, secret, universal and periodic vote, the separation of powers, and individual rights and guarantees; Turkey declares its first three articles—republic, characteristics of the republic, integrity of the State—irrevocable and their amendment unproposable (art. 4). Portugal's Constitution carries the technique to its maximum extension, protecting in art. 288 a long catalogue of limits—from national independence and the republican form to the rights of workers and the autonomy of the archipelagos—while the Czech Constitution generalizes it in a single clause: amendment of the 'essential requirements of the democratic State governed by the rule of law' is impermissible (art. 9(2)). These provisions are the legal translation of negative realism: the constitutional order 'digs in' against transient majorities, producing that unamendable resistance which distinguishes the real from the merely opinable. The eternity clause is thus not an anomaly but the purest expression of the thesis: it is the place where a social object is deliberately engineered to behave, within the order, as if it were real in the strong sense. Section 5.5 will show that the same function can be discharged without any textual clause at all—by judicial doctrine, as in India's basic structure—which is precisely why the comparison must be functional rather than textual.

4.3. The generative and the secular: the constitution as framework

In the secular age, the constitution assumes the function—once religious—of providing the stable framework of common life. Secularity (laïcité) is inscribed as a founding principle:

*"La France est une République indivisible, laïque, démocratique et sociale."*²⁰

*"Es voluntad del pueblo mexicano constituirse en una República representativa, democrática, laica y federal [...]."*²¹

The 2012 addition of the word laica to Mexico's art. 40 illustrates with unusual clarity the nature of the social object: a feature of the State begins to exist legally when—and because—it is inscribed. Before inscription, secularity was practice and doctrine; with it, secularity becomes an opposable social object. The generative dimension follows: from the founding inscription flow the further objects of the order—organs, competences, statutes, rights—each of which exists because the constitution authorizes its

¹⁷ Basic Law of the Federal Republic of Germany (1949), art. 79(3).

¹⁸ Constitution of France (1958), art. 89, final paragraph.

¹⁹ Constitution of Italy (1947), art. 139.

²⁰ Constitution of France (1958), art. 1.

²¹ Constitution of Mexico (1917, as amended 2012), art. 40.

inscription. The constitution is generative in the strict sense that it is the source from which other social objects derive their validity.

4.4. Recognition of the other: plurality and interculturality

The theory of alterity finds express constitutional correlate. Colombia inscribes recognition of the other as a fundamental principle:

*"El Estado reconoce y protege la diversidad étnica y cultural de la Nación colombiana."*²²

Mexico declares the pluricultural composition of the nation 'originally founded on its indigenous peoples' (art. 2), and the Andean charters reintroduce a communal ontology in relation to the cosmos. Ecuador recognizes nature as a subject of rights:

*"La naturaleza o Pacha Mama, donde se reproduce y realiza la vida, tiene derecho a que se respete integralmente su existencia y el mantenimiento y regeneración de sus ciclos vitales, estructura, funciones y procesos evolutivos."*²³

Bolivia inscribes, as ethical-moral principles of the plurinational State, a repertoire of indigenous cosmovisions:

*"El Estado asume y promueve como principios ético-morales de la sociedad plural: ama qhilla, ama llulla, ama suwa (no seas flojo, no seas mentiroso ni seas ladrón), suma qamaña (vivir bien), ñandereko (vida armoniosa), teko kavi (vida buena), ivi maraei (tierra sin mal) y qhapaj ñan (camino o vida noble)."*²⁴

Measured against Todorov's three axes, these clauses are recognition in the full sense: axiological (the other's values are affirmed as principles of the whole plural society, not tolerated as folklore), praxeological (coexistence and interculturality are organized, not assimilation), and epistemic (the other appears in its own words—Aymara, Quechua, Guaraní—inside the supreme inscription itself). They convert the condition of standing between cultures—the Nepantla—from exile into constitutionally recognized belonging. In Glenn's key, they are constitutions functioning as the reconciliatory meeting-point of distinct legal traditions: the liberal tradition of individual rights and the chthonic tradition of communal life in relation to the land are captured together in a single supreme inscription, held in a multivalent rather than a binary logic. Whether this reconciliatory capacity is peculiar to the Andes or a general property of the founding inscription is the question the next section pursues across every continent.

5. THE FOUNDING INSCRIPTION ACROSS THE WORLD'S LEGAL TRADITIONS

The thesis now faces its comparative test. Glenn's map of the world's legal traditions—civil, common, chthonic, Talmudic, Islamic, Hindu, East Asian and socialist law—is used here as the itinerary; on each leg, the question is the same: how does this tradition organize the relation between foundation, inscription and authority, and does the category of founding inscription illuminate it without distorting it? The tour begins at home, with the two Western traditions whose fusion produced the modern enacted constitution—for they too are traditions in Glenn's sense, with capture points, information bases and rules of transmission of their own—then moves to the tradition most distant from the written document, the chthonic, and onward through the Talmudic, Islamic, Hindu and East Asian worlds, ending with the youngest constitutional laboratory, Sub-Saharan Africa, and with the inscriptions now forming beyond the State. Three findings, announced here and gathered in §5.9, run through all the legs: the founding inscription may be enacted, revealed or distributed; its hardness may be textual, doctrinal or ritual; and everywhere the enacted constitution of the modern State coexists, well or badly, with the older inscriptions of the traditions it did not create.

²² Constitution of Colombia (1991), art. 7.

²³ Constitution of Ecuador (2008), art. 71.

²⁴ Constitution of Bolivia (2009), art. 8(I).

5.1. *The civil-law and common-law traditions: two Western modes of inscription*

It is a salutary discipline, before surveying the world, to see the West itself as tradition rather than as the unmarked default. Glenn's account supplies the means. The civil-law tradition originates in an act of capture that his catalogue of foundations lists alongside Sinai and the Dreaming: the writing down of the Roman dispute-settlement process in the Twelve Tables. Its subsequent history is a textbook of the capture-application-recapture loop operating at civilizational scale: the classical jurists' *responsa* recaptured in Justinian's Digest; the Digest itself falling out of use for some seven centuries—Glenn's own example of an interrupted tradition—until its medieval rediscovery at Bologna ignited the *ius commune*; the *ius commune* recaptured again, through the rationalist filter of natural-law science, in the great codifications, of which the Code civil of 1804 is the emblem. The tradition's distinctive epistemology is the Priority of Theory: law as system, knowable through its rational structure; and its distinctive technology of inscription is the code—comprehensive, systematic, enacted at a stroke. The modern enacted constitution is, formally, this technology raised to the supreme level: the codification of foundation itself. It is therefore no accident that the civil-law world also invented the constitution's characteristic guardian, the centralized constitutional court of Kelsenian design—a specialized organ whose whole function is to police the hierarchy of inscriptions that codified foundation creates.

The common-law tradition captures its information otherwise. Its origination is likewise procedural—the writs of Henry II and their first applications—but its growth was never consolidated into a code: the tradition is the accumulated information base of decided cases, transmitted through the discipline of precedent, its reasoning, as Glenn notes with Postema, essentially discursive, a practised framework of practical reasoning—a Priority of Practice surviving in the heart of the West. Its constitutional expression is accordingly the distributed founding inscription: the British constitution dispersed across Magna Carta, the Bill of Rights 1689, the Act of Settlement, the Parliament Acts, devolution statutes, precedent and convention—a record, though a plural one, whose hardening technology is continuity and convention rather than clause. The United States then appears in its true comparative light: a hybrid, grafting a civilian-style supreme enacted code of foundation onto common-law method—whence its most consequential constitutional invention, judicial review, established not by the text but by the tradition's own case-law mechanism in *Marbury v. Madison* (1803): the distributed method declaring the enacted inscription's supremacy, exactly as Israel's Migdal would do, in the inverse configuration, two centuries later. The two Western traditions thus already exhibit, between themselves, the full span of the variable this section tracks across the world: one foundation gathered into a single hardened document, one dispersed through a self-transmitting practice—and both fully intelligible as founding inscriptions.²⁵

5.2. *The chthonic tradition: Oceania and the Americas*

Glenn calls chthonic the legal tradition of peoples who live in intimate relation with the earth—the oldest of all traditions, transmitted orally, in which law, religion, kinship and land form a single normative fabric. Its point of capture is not a document but the Dreaming: the originary time in which the ancestral beings shaped the land and laid down the law, held since in ritual, song-lines, kinship rules and the land itself. The chthonic tradition thus poses the sharpest possible challenge to a documental theory of foundation: here the founding inscription is not written on a support; the support is the country itself, and the community is its reader. Ferraris's categories nonetheless apply, provided they are stretched honestly: ritualized collective memory is a support legible by at least two persons—indeed by whole generations—and the Dreaming functions as a founding inscription in the strict functional sense: sovereign (no higher norm within the tradition), recursive (it institutes the elders who transmit it), generative (all particular obligations flow from it), and maximally unamendable (it is not for any living generation to alter).

The constitutional history of Oceania and the Americas is the history of the violent denial, and then the partial judicial recognition, of that older inscription by the enacted one. In Australia, the fiction of *terra nullius*—land belonging to no one—wrote the chthonic inscription out of the colonial legal order for two

²⁵ G. J. Postema, 'Philosophy of the Common Law', in J. Coleman and S. Shapiro (eds.), *The Oxford Handbook of Jurisprudence and Philosophy of Law* (Oxford: Oxford University Press, 2002).

centuries, until the High Court, in *Mabo v. Queensland (No 2)* (1992), rejected it and recognized native title as surviving the acquisition of sovereignty: the common law itself recaptured, in Glenn's sense, normative information it had refused to read. Yet the recognition was disciplined by a documental test with tragic edges: in *Yorta Yorta* (2002), a community whose transmission had been interrupted by dispossession was held to have lost the continuity of tradition the law required—the interruption of capture and recapture, exactly as Glenn's model predicts, extinguishing the claim. Australia's enacted constitution (1901), meanwhile, still contains no recognition of the first peoples, a silence which the defeated 2023 referendum on an indigenous Voice left in place: the founding inscription and the chthonic inscription remain unreconciled at the constitutional level.

New Zealand presents the inverse configuration: a founding inscription that is dual from birth. The Treaty of Waitangi (1840) exists in two texts, English and Māori, which famously diverge at the decisive point—the English text cedes sovereignty, while te Tiriti's Māori text cedes *kāwanatanga* (governance) and guarantees *tino rangatiratanga* (chieftainship, full authority) over lands and treasures. Within an otherwise uncoded constitution, the Treaty operates as a founding inscription whose meaning is permanently contested between two traditions reading two texts of the same act; the principles of the Treaty, developed by courts and the Waitangi Tribunal, are the ongoing, institutionalized labor of reconciliation between them. Todorov's epistemic axis is here inscribed into the foundation itself: the other's understanding of the founding act, in the other's own language, is part of the constitutional record and cannot be erased from it.

Canada completes the picture with an explicit constitutional recapture: section 35(1) of the Constitution Act, 1982 provides that 'the existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed'—the enacted founding inscription incorporating, by reference, the chthonic one, in the line of development opened by Calder. The Andean constitutions examined in §4.4 go furthest, inscribing the chthonic cosmovision inside the supreme text in indigenous languages; Colombia adds an institutional dimension by establishing, in art. 246, a special indigenous jurisdiction empowered to apply the communities' own norms and procedures within their territories—enacted recognition not merely of the other's law but of the other's adjudication. Elsewhere in Latin America the reconciliation runs increasingly through a supranational channel: ILO Convention 169 and the American Convention, as read by the Inter-American Court since *Awas Tingni* (2001) and *Saramaka* (2007), oblige States to recognize communal property in ancestral lands and to secure prior consultation—in Colombia's jurisprudence, a fundamental right of the communities—so that the chthonic inscription now binds national constitutions partly from above, through the very supranational architecture examined in §5.8. Taken together, the cases of this subsection establish the first comparative finding: the chthonic tradition possesses founding inscriptions of its own, on supports the modern State long refused to recognize as supports at all; and the measure of a modern constitution's reconciliatory capacity is precisely how much of that older inscription it can carry without rewriting it in the majority's vocabulary alone.

5.3. *The Talmudic tradition and Israel's distributed inscription*

The Talmudic tradition is, in Glenn's map, the paradigm of a legal tradition constituted by commentary: a revealed capture (the Torah given to Moses), an ocean of recorded application (Mishnah, Gemara, the *responsa* literature), and an explicit theology of transmission—the written law and the oral law handed down together, generation to generation. It is, of all traditions, the one that most literally embodies the equation of tradition with the accumulation and transmission of normative information; law here is study, and the community is constituted by its relation to the text. For the theory of the founding inscription, the Talmudic tradition supplies the limit case of textual community: a people that, for two millennia without a State, was held together by an inscription and its commentary alone—documentality, one might say, surviving the total loss of territory and mechanism.

The State of Israel then presents one of comparative law's most instructive paradoxes: the polity of the people of the book has no single constitutional book. The 1948 Declaration of Independence promised a constitution; the Harari Resolution (1950) deferred it, providing instead for Basic Laws to be enacted

chapter by chapter and eventually consolidated. What exists, therefore, is a distributed founding inscription—like the United Kingdom's, but self-consciously provisional—whose supremacy was itself established not by text but by adjudication: in *United Mizrahi Bank v. Migdal* (1995), following the enactment of Basic Law: Human Dignity and Liberty (1992), the Supreme Court held that Basic Laws enjoy constitutional rank and that ordinary statutes infringing them may be invalidated—the 'constitutional revolution'. The founding inscription here was assembled retroactively, its hardness declared by its interpreters rather than by its authors: a striking confirmation that what makes an inscription founding is the function it discharges in the order, not the solemnity of its enactment.

The unresolved tension of this order is the relation between its two inscriptions: the civic one (a State 'Jewish and democratic', in the formula of the Basic Laws) and the Talmudic one, which continues to govern personal status through religious courts and to claim, for part of the population, an authority older and higher than the State's. Basic Law: The Nation-State of the Jewish People (2018), constitutionalizing the State's Jewish character without a parallel clause on equality, sharpened rather than settled the question of how the two are to be reconciled—and the 2023 constitutional crisis over judicial reform showed how fragile a distributed inscription's hardness can be when its guardian institution is itself contested. For the thesis, Israel establishes the second comparative finding: a founding inscription may be distributed and judicially consolidated, and its maximal hardness is then doctrinal rather than textual—a hardness that exists exactly insofar as the community continues to honor its courts' declaration of it.

5.4. The Islamic tradition: the revealed inscription

The Islamic legal tradition organizes foundation, inscription and authority in a way that puts the strongest pressure on the recursivity limb of the thesis. Its capture is revelation: the Qur'an, and the hadith—the recorded sayings and deeds of the Prophet, whose very name, Glenn notes, is the word usually translated as 'tradition'. Its application and recapture are the work of the schools of jurisprudence (*fiqh*), elaborating the shari'a through methods—consensus, analogy—that are themselves part of the tradition's information base. Crucially, on the tradition's own self-understanding, the founding inscription is not enacted by any human assembly: it is received. God, not the people, is the author of the supreme norm; human authority is exercised under it, never over it.

Modern constitutions of Muslim-majority states manage the relation between this revealed inscription and the enacted one along a spectrum. At one pole, Saudi Arabia's Basic Law of Governance (1992) declares in its first article that the Kingdom's constitution is 'the Book of God Most High and the Sunna of his Messenger': the enacted document expressly subordinates itself, presenting itself not as the founding inscription but as an ordinance under it. At the intermediate points, supremacy or repugnancy clauses make the revealed inscription a material limit on the enacted one: Iran's Constitution (1979) provides in art. 4 that all laws and regulations must be based on Islamic criteria, with the Guardian Council as the organ of control; Egypt's Constitution (2014, continuing the 1980 amendment of the 1971 text) declares in art. 2 that the principles of Islamic shari'a are the principal source of legislation. At the far pole, Muslim-majority republics such as Turkey (constitutionally secular) or Indonesia (*Pancasila*) enact founding inscriptions that hold the revealed tradition at arm's length or mediate it through a civic creed.

For the thesis, the Islamic configuration yields the third comparative finding, and a refinement rather than a refutation. Where the founding inscription is held to be revealed, the recursive loop of §4.1 is indeed broken from above: the inscription does not institute its own author. But the four functional marks persist, redistributed. Sovereignty and maximal unamendability migrate to the revealed text—which is, on the tradition's own terms, absolutely unamendable, the limit case of hardness; recursivity and generativity are exercised by the interpretive institutions (the schools, the Guardian Council, the constitutional courts applying repugnancy clauses) that determine what the revealed inscription requires here and now. The enacted constitution then occupies a theoretically novel position: it is a founding inscription of the second degree, founding the State's machinery while acknowledging a first-degree inscription it did not and could not enact. The category of founding inscription, far from being provincial

to secular constitutionalism, is what allows this two-level architecture to be described precisely—and it discloses a structural kinship, invisible to purely doctrinal comparison, between the Islamic configuration and every constitutional order that acknowledges an unamendable core it claims to have found rather than made.

5.5. *The Hindu tradition and India's basic structure*

The Hindu legal tradition, in Glenn's account, distinguishes within its own information base the Sruti—that which was heard, revelation—from the Smriti—that which is remembered, the recorded teaching, of which the dharmashastra literature is part. Its central normative concept, dharma, designates an order at once cosmic, social and personal, differentiated by station and stage of life rather than uniform; and its classical self-understanding is markedly non-statist—kings enforce, but do not make, the deepest law. The tradition thus carries, like the Islamic, the idea of a normative layer that positive authority finds rather than founds; unlike the Islamic, it carries it in a radically plural, internally differentiated form, hospitable to the coexistence of many communities under many laws—a feature colonial and republican India would inherit as the system of distinct personal laws.

The Constitution of India (1950)—the longest enacted founding inscription in the world—was written against as much as within this inheritance: a deliberately transformative document, abolishing untouchability (art. 17), reserving representation for scheduled castes and tribes, and committing the State to social revolution by constitutional means, while retaining religious personal laws and directing the State, someday, toward a uniform civil code (art. 44). Its amendment clause (art. 368) contains no eternity clause; textually, everything is amendable. It is therefore of the highest theoretical significance that India is the jurisdiction where maximal unamendability was discovered rather than enacted: in *Kesavananda Bharati v. State of Kerala* (1973), a thirteen-judge bench held that Parliament's amending power, though plenary, does not extend to destroying the basic structure of the Constitution—supremacy of the Constitution, republican and democratic government, secularism, separation of powers, judicial review among its elements—a doctrine reaffirmed against emergency-era amendments in *Indira Nehru Gandhi* (1975) and *Minerva Mills* (1980), and since exported across the common-law world.

The basic structure doctrine is the fourth comparative finding in its purest form: hardness without text. The founding inscription's unamendable core here exists entirely at the level of doctrine—of application and recapture, in Glenn's vocabulary—demonstrating that maximal unamendability is a function the order performs, not a clause it contains. And the doctrine's deep logic is exactly the ontological argument of §6: an amendment that destroyed the basic structure would not modify the object but replace it with another; the court, in policing the distinction between amendment and destruction, is policing the identity conditions of the social object itself. That this insight arose in a legal culture formed by a tradition which had always held the deepest law to be found rather than made is, on the account defended here, no coincidence: the basic structure doctrine is the recapture, inside a secular enacted constitution, of the Hindu tradition's oldest structural intuition.

5.6. *East Asia and the socialist tradition: hardness without eternity clauses, inscription without mechanism*

Glenn characterizes the East Asian legal tradition by the historical primacy of informal over formal ordering: the Confucian preference for li (rites, propriety, relational virtue) over fa (positive law and punishment), law as a regrettable necessity rather than the community's self-expression, and the consequent combination—unique among the great traditions—of formal codes with powerful informal methods. Foundational order here is carried less by a supreme document than by ritual, hierarchy and the cultivation of virtue; the tradition's founding inscriptions are the classics, and their guardians the literati. Two modern configurations test the thesis against this inheritance.

Japan's Constitution (promulgated 1946, in force 1947) is an enacted founding inscription of impeccable liberal form—popular sovereignty, the renunciation of war in art. 9, a rigid amendment rule in art. 96 (two-thirds of both Houses plus referendum). Its theoretically remarkable property is its practice: it has never been amended—not once in nearly eight decades—despite recurrent political programs to revise

art. 9. Its hardness, in other words, exceeds anything its text requires: art. 9 functions as a *de facto* eternity clause, entrenched not by law but by what can only be called constitutional ritual—the sedimented, quasi-sacral status the postwar settlement acquired in public culture. Where Germany hardened its core by clause and India by doctrine, Japan hardened its core by tradition in Glenn's exact sense: by the continuous, honored transmission of the inscription's meaning. The East Asian primacy of rite over rule, far from being displaced by the imported constitutional form, reappears as the very mechanism of its entrenchment.

The People's Republic of China presents the opposite decoupling. The 1982 Constitution is a complete enacted inscription—supremacy clause, catalogue of rights, state organs—yet its preamble entrenches the leadership of the Communist Party, constitutional review by ordinary courts is unavailable, and the operative rules of the political mechanism lie substantially in Party documents outside the constitutional text; the 2018 amendments (removing presidential term limits, inscribing the current doctrinal formula) confirmed that the text follows, rather than constrains, the locus of real authority. In the categories of this article: the enacted inscription and the effective mechanism are systematically decoupled, and the functional founding inscription of the order—the one from which organs and obligations actually flow—is distributed between the constitutional text and the Party's normative corpus. The comparatist's label 'programmatic constitution' names the phenomenon; the ontology of §2 explains it: where inscription and mechanism separate, the enacted text becomes a partially dormant social object, and the real founding inscription must be sought wherever capture, application and recapture actually occur.

China's configuration is best understood as the living continuation of a tradition Glenn treated as distinct in its own right: the socialist legal tradition, whose informational lineage runs from the Soviet constitutions—above all the 1936 text, the paradigm of the semantic constitution, a complete and even generous inscription whose mechanism was located entirely elsewhere—through the people's democracies to the surviving socialist orders of Asia and the Caribbean. The tradition's distinctive teaching concerns precisely the relation between inscription and mechanism: law is conceived instrumentally, as a superstructure in the service of a transformation directed by the party, so that the constitution records the stage of the transformation rather than constraining its director. The post-1989 fate of this tradition illustrates, at continental scale, Glenn's three fates of interrupted transmission. In Central Europe the socialist layer was deliberately buried and the older civil-law tradition recaptured, with the German model as template—new founding inscriptions, Kelsenian courts, eternity-style cores. In the Russian Federation the recapture was more ambivalent: the 1993 Constitution protects its chapters 1, 2 and 9 with an aggravated procedure reserving their revision to a special Constitutional Assembly—a structural intangibility of eternity-clause type—yet the sweeping 2020 amendment package, which reset presidential terms and inscribed sovereigntist and identity clauses while formally leaving the protected chapters untouched, showed the amendment rule being navigated around rather than through, the mechanism once again outrunning the inscription. And in the orders where the tradition continues, its information is still transmitted and still applied: the programmatic constitution is not a defect of drafting but the faithful expression of a tradition for which the founding inscription was never meant to be the supreme layer of the order.

5.7. Sub-Saharan Africa: *ubuntu*, custom and reparative foundation

African constitutionalism since the 1990s is the youngest and, for the thesis, one of the most instructive constitutional laboratories, because its founding inscriptions were written in explicit confrontation with three inheritances at once: precolonial customary law (the African branch of the chthonic tradition), the imposed colonial legal orders (civil or common law), and the postcolonial experience of the façade constitution. Three configurations mark the field.

South Africa's Constitution (1996) is the continent's paradigm of reparative foundation: a founding inscription whose preamble—quoted in §4.1—defines the constituent act as healing, the transformation of a past of division into a future of rights. Its jurisprudential signature is the incorporation of an African ethical concept into the constitutional core: in *S v. Makwanyane* (1995), abolishing the death penalty, the Constitutional Court reasoned from *ubuntu*—the interim Constitution's postamble had invoked 'a

need for ubuntu but not for victimisation'—the ethic of personhood-through-others, umuntu ngumuntu ngabantu, as a foundational value of the new order. Ubuntu is chthonic normative information recaptured at the apex of an enacted inscription: Glenn's reconciliation performed at the level of constitutional principle, and Todorov's axiological recognition—the other's ethics adopted as the order's own.

Kenya's Constitution (2010), adopted by referendum after the 2007-2008 post-electoral violence, institutionalizes the same reconciliation in structural form: art. 2 asserts the Constitution's supremacy and voids inconsistent law including customary law, yet art. 11 recognizes culture as 'the foundation of the nation', and art. 159(2)(c) directs the courts to promote traditional dispute resolution mechanisms, subject to the Bill of Rights. The customary inscription is thus neither abolished nor merely tolerated: it is constitutionally channeled—subordinated in validity, incorporated in function—a textbook instance of multivalent rather than binary ordering of traditions. Ethiopia's Constitution (1995) radicalizes the recognition of collective others in a different direction: its constituent subject is not one people but many—the preamble opens 'We, the Nations, Nationalities and Peoples of Ethiopia'—sovereignty resides in them (art. 8), and art. 39 grants every nation, nationality and people an unconditional right to self-determination up to secession. The founding inscription here deliberately renounces the maximal hardness of the classical model at its most sensitive point—the permanence of the union itself—inscribing the community's dissolubility into its foundation: the limiting case, and the stress test, of a recursive inscription, whose tension with the country's subsequent conflicts belongs to the sociology of the gap between text and mechanism.

Nigeria adds the continent's most complex configuration: a single enacted inscription (1999) presiding over three living traditions at once—received common law, Islamic law, and customary law—with constitutionally established Sharia and Customary Courts of Appeal, and, since 1999-2000, the re-extension of Islamic criminal law in twelve northern states, contested precisely at the constitutional joints (the prohibition of a state religion in s. 10 against the tradition's claim to comprehensive scope). Nigeria thus lives, in one federation, the entire typology of this section: subordination in validity, incorporation in function, and a permanently negotiated boundary between the enacted inscription and two inherited ones—the multivalent logic not as achieved harmony but as institutionalized, sometimes explosive, negotiation.

5.8. Beyond the State: supranational and transnational inscription

Glenn opens his account of legal tradition by observing that the sources of law are expanding beyond the State, and that the theoretical construction of the national legal system is becoming correspondingly less adequate as a descriptive or normative model. The final leg of the tour therefore looks upward from the State, to the founding inscriptions now forming above and between national orders. The paradigm is the European Union. Its foundations are, formally, treaties—inscriptions of classical international law—yet the Court of Justice, in *Van Gend en Loos* (1963) and *Costa v. ENEL* (1964), declared that they had created a new legal order, whose norms take direct effect within, and primacy over, the law of the member States. The structural analogy with Migdal and with *Marbury* is exact and remarkable: once again a founding inscription's supremacy—here, its very existence as foundation rather than contract—was declared doctrinally by its guardian institution rather than enacted by its authors; and once again the declaration held because the community of its addressees, national courts included, continued, with famous reservations, to honor it. The German Federal Constitutional Court's counter-limits jurisprudence—reviewing, from *Solange* onward, the reach of Union law against the eternity-protected core of the Basic Law—then displays two founding inscriptions negotiating their hierarchy in real time: the multivalent, conciliatory relation between traditions that Glenn describes, transposed to the relation between constitutional orders themselves.

The pattern generalizes. The European Convention on Human Rights, with its Court, functions for its forty-six States as a partial founding inscription of the second degree—a hardened rights-core external to each national order yet internal to its practice; the United Nations Charter claims, in art. 103, primacy over conflicting treaty obligations, the germ of a hierarchy in the international order itself; and the literature on the constitutionalization of international law and on transnational constitutionalism registers

the diffusion of foundation-language beyond its statal cradle. For the thesis, the significance is architectural: the two-level configuration first met in the Islamic tradition—an enacted inscription operating under a higher one it did not author—reappears here in fully secular form, with national constitutions operating under, beside, or against supranational inscriptions whose hardness is doctrinal and whose support is a treaty regime plus a court plus a compliance practice. Foundation, this suggests, was never essentially statal: the State was one historical carrier of the founding inscription, and the form is now migrating—upward to supranational orders, and, as §11 will argue, sideways toward the private infrastructures of the digital record.

5.9. Comparative synthesis: three findings

The tour yields three findings that generalize the thesis beyond its Western cradle. First, on the mode of the inscription: the founding inscription may be enacted (the revolutionary single document), revealed (the Islamic configuration, with the enacted constitution as a second-degree inscription under it), or distributed (the United Kingdom, Israel, the chthonic traditions, in part China)—and these modes may be layered within one order, as the supranational cases of §5.8 confirm in secular form. Second, on the mode of hardness: maximal unamendability may be textual (Germany, Brazil, Turkey), doctrinal (India's basic structure; Israel's judicially declared supremacy; Colombia's substitution doctrine; the primacy of Union law), or ritual (Japan's unamended art. 9; the chthonic Dreaming; British convention)—three technologies for one function. Third, on plurality: everywhere, the enacted constitution coexists with older or higher inscriptions it did not create, and the decisive comparative variable is the mode of their relation—denial (*terra nullius*; assimilationist constitutionalism), subordination (repugnancy one way or the other; counter-limits), or reconciliation (section 35, the Treaty principles, ubuntu, art. 159, the Andean charters, the European dialogue of courts). The founding inscription is thus not one Western artifact among the world's legal forms; it is the general form of legal foundation, of which the Western enacted constitution is one—historically expansive, but neither the oldest nor the only—species. The table condenses the map.

Tradition (Glenn)	Point of capture	Mode of inscription	Technology of hardness	Exemplary orders
Civil law	Twelve Tables; Digest; codifications	Enacted (code of foundation)	Textual (eternity clauses); centralized review	Germany, France, Italy, Latin America
Common law	Writs of Henry II; accumulated cases	Distributed (statute, precedent, convention)	Ritual-conventional; doctrinal (Marbury)	United Kingdom, United States (hybrid)
Chthonic	The Dreaming; oral transmission	Distributed (memory, rite, land)	Ritual (not for the living to alter)	Australia, New Zealand, Canada, Andean states
Talmudic	Torah; Mishnah and Gemara	Revealed + distributed commentary	Doctrinal (Migdal); textual community	Israel (Basic Laws)
Islamic	Qur'an; hadith; fiqh	Revealed (first degree) + enacted (second degree)	Absolute (revealed core); repugnancy control	Saudi Arabia, Iran, Egypt
Hindu	Sruti and Smriti; dharmashastra	Enacted over plural personal laws	Doctrinal (basic structure)	India
East Asian	The classics; li over fa	Enacted; program beside mechanism	Ritual (Japan); party-normative (China)	Japan, China
Socialist	1917 rupture; 1936 model text	Enacted, programmatic (semantic)	Structural (RF chs. 1, 2, 9); party direction	USSR (hist.), Russia, China, Cuba, Vietnam
African / mixed	Customary law; liberation founding	Enacted, incorporating custom	Textual + referendum; reparative values	South Africa, Kenya, Ethiopia

Tradition (Glenn)	Point of capture	Mode of inscription	Technology of hardness	Exemplary orders
Supranational	Founding treaties; Van Gend, Costa	Treaty + doctrine (second degree, secular)	Doctrinal (primacy); counter-limits dialogue	EU, ECHR system, UN Charter art. 103

6. ONTOLOGICAL ANALYSIS

What is a constitution, ontically? Not a physical object: burning every printed copy would not abolish it so long as the community sustains it in its records and practices—as the Talmudic tradition demonstrated for two millennia, sustaining a complete legal order with no State and, at times, precious few physical supports. Nor an ideal object: it is neither eternal nor discovered but promulgated (or received, or accumulated), and it can be repealed, replaced or die of desuetude. It is a social object: dependent on subjects, yet independent of any single subject. The following table locates the constitutional inscription within the ichnological hierarchy of the trace.

Level of inscription	Definition and constitutional example
Trace	A mark with neither intention nor addressee — e.g. the historical vestige of an unrecorded pact.
Record	A trace preserved and retrievable — e.g. the minutes of a constituent assembly; the memorized but not yet applied teaching.
Inscription	A record endowed with normative value; it creates obligations — e.g. a statute, a treaty, a judicial precedent.
Founding inscription	An inscription that founds the system and on which all others depend — enacted (a supreme constitution), revealed (Qur'an and Sunna under the Saudi Basic Law), or distributed (the UK order; Israel's Basic Laws; the chthonic Dreaming).

The comparative tour obliges the ontology to be stated with more care than the Western case alone would demand. Three refinements follow. First, on the support: the support of a founding inscription need not be a document; it may be ritualized collective memory, song, or the land itself as read by a tradition (§5.1). What the rule social object = inscribed act requires is durability, legibility by at least two persons, and opposability—all of which oral traditions of sufficient discipline achieve, which is why the law refused to see them only at the price of fictions like *terra nullius* (§5.2). Second, on the author: the act of inscription may be performed by the community it founds (the enacted mode), attributed to an author outside the community altogether (the revealed mode), or performed by no assignable act at all, precipitating instead from accumulated application (the distributed mode). Third, on identity: a founding inscription has identity conditions—there are changes it can survive (amendment) and changes it cannot (destruction, substitution)—and these conditions are fixed by its core, whether that core is declared in the text, discovered by doctrine, or guarded by rite.

The problem of identity deserves a paragraph of its own, for it is where social ontology and constitutional doctrine make contact most precisely. A constitution amended a hundred times—Mexico's has been amended many hundreds—raises the ancient puzzle of the ship of Theseus: at what point does replacement of parts become replacement of the whole? The doctrines of §4.2 and §5.5 are, ontologically read, the legal answers to that puzzle: an eternity clause names the planks that may never be replaced; the basic-structure and substitution doctrines empower a court to judge, case by case, whether a given replacement leaves the ship the same ship. Total revision procedures—as in Switzerland or Spain, where a distinct, aggravated track exists for replacing the whole—draw the same distinction procedurally: they acknowledge, in the amendment rule itself, that beyond a certain threshold the community is no longer amending its founding inscription but performing a new founding act. The founding inscription is thus the rare artifact whose identity conditions are not left to metaphysics but are themselves inscribed, contested and adjudicated inside the object they define.

Unamendability, ontologically central in Ferraris, has its exact social expression in the three technologies of hardness identified in §5.9: the eternity clause, the basic-structure doctrine, the constitutional rite. In all three, the constitution deliberately produces a zone of the social that behaves as if it were real in the strong sense—resisting the will to amend it. Here it is essential not to collapse levels: the physical resistance of a mountain (natural ontology) and the legal resistance of an entrenched core (social ontology) are analogous in function, not identical in nature. The mountain resists because of what it is independently of us; the entrenched core resists because the community has inscribed, and continues to honor, its refusal to unmake it. To confuse the two would be to naturalize the social and thereby to mistake the source of its authority—an error the revealed mode makes structurally tempting, since there the tradition itself asserts that the deepest layer is not of the community's making. The ontologist need not adjudicate that assertion; it suffices to observe that, within the social order, the assertion functions as the most radical hardening device of all: what no one enacted, no one can repeal.

7. EPISTEMOLOGICAL ANALYSIS

On the plane of knowledge, the constitution poses the problem of interpretation. 'Strong textualism'—the thesis that everything is interpretation—would dissolve the constitution into the opinion of its interpreters; Ferraris's 'weak textualism', by contrast, recognizes that the constitution is a textual object—it lives by its inscription—without everything thereby being text: the territory, the bodies, the life that the constitution declares it protects are not texts. This distinction does real work. It allows one to affirm that the meaning of the constitution is bound to its inscription (so that interpretation is not invention) while denying that the objects the constitution governs are themselves textual (so that constitutional interpretation answers to a reality it does not create).

The distinction between validity (an epistemic-normative question) and efficacy (a sociological question) prevents one from confusing the correctness of an interpretation with its actual force. The doctrine of constitutional amendment makes the point: courts that review the 'constitutionality of amendments'—under an eternity clause, as in Germany; under the basic-structure doctrine, as in India and its many receptions; under the substitution doctrine, as in Colombia since 2003—operate on the supposition that there is an unamendable content which no interpretation can deactivate without destroying the object itself. Epistemologically, these doctrines are the recognition that the founding inscription sets a limit to its own interpretation: beyond a certain point, to 'reinterpret' the constitution is no longer to know it differently but to replace it with another object. Kesavananda states the ontological argument in judicial form; Migdal shows that the interpreters may even be the ones who declare where the inscription's constitutional rank begins.

The great schools of constitutional interpretation can themselves be re-described, in this frame, as rival epistemologies of the founding inscription. Originalism, in its textualist form, treats the inscription as a closed record: what is knowable of the constitution is fixed at capture, and later readers recover, but do not add to, the information base. Living constitutionalism—the Canadian living tree, the ECHR's living instrument doctrine—treats the inscription as Glenn treats a tradition: a growing information base in which each authoritative application is recaptured and becomes part of what the constitution now is. The comparative record suggests that the second description is the more accurate account of what all systems in fact do—even professedly originalist practice recaptures its own precedents—but the first captures a real constraint: recapture is bounded by the identity conditions of the object, so that interpretation which destroyed the basic structure would no longer be knowledge of this inscription at all. Interpretive method, in short, is the epistemology of a tradition whose supreme layer happens to be a single object; and the perennial oscillation between fidelity and growth is nothing other than the capture-recapture loop, experienced from inside.

Multilingual foundations add a final epistemological stratum: where the founding inscription exists authentically in several languages, knowing the constitution is inseparable from the labor of translation. South Africa's text lives in eleven official languages; Canada's in two, each version equally authoritative, so that interpretation proceeds through the shared meaning of both; the Union's treaties in twenty-four, with the Court of Justice comparing versions as a routine method; and the Treaty of Waitangi, as §5.2

showed, founds an order on two texts whose divergence is itself the central constitutional question. The epistemology of such inscriptions is irreducibly comparative: no single version is the constitution, which exists, strictly, as the disciplined relation among its versions. This is Todorov's epistemic axis institutionalized at the deepest level—the order obliging itself, in its very mode of existence, to know itself through more than one language—and it quietly refutes the assumption, inherited from the monolingual nation-state, that a founding inscription must speak with one voice to found one order.

Glenn adds an epistemological warning of a different order, indispensable for comparison: the traditions differ in their very theory of legal knowledge. Some operate under a Priority of Theory—the civilian ambition of system, in which knowing the law is knowing its rational structure—while others operate under a Priority of Practice: the common law for most of its history, Jewish law, chthonic law, in which knowing the law is knowing how it has been done, case by case, and the question 'what is law?' need never be asked in general form. Most of the world's traditions draw no sharp epistemic line between law and the rest of normative life, and function perfectly well without one. The comparative epistemologist must therefore resist projecting the theory-first stance onto traditions that do not share it: to ask of the Dreaming or of dharma for their rule of recognition is to commit a category mistake. The workable question, Glenn suggests, is always local: what do we take as law, normatively and for good reason, in this society, at this time, for this case? The founding-inscription framework respects this pluralism, because it identifies foundations by function—capture, application, recapture, hardness—rather than by any tradition-specific theory of what law must be.

8. SOCIOLOGICAL ANALYSIS

Sociologically, the constitution is the mechanism that transforms a population (composition) into a State (a system with structure and mechanism). It determines the endostructure—rights, the division of powers—and the exostructure—sovereignty, nationality, treaties. The German 'social State' clause (art. 20: sozialer Bundesstaat) and its analogues (France, art. 1: République [...] sociale) inscribe the regulation of the economic subsystem by the political one, and thereby illustrate Bunge's and Romero's point that a system's mechanism includes the way one subsystem governs another. The Andean recognition of nature's rights extends the same logic to the biological subsystem's environment; the Ethiopian secession clause writes the possible reconfiguration of the composition itself into the mechanism.

The comparative tour enriches the sociology at its most sensitive point: the gap between inscription and mechanism. The pure cases mark the poles. Japan exhibits mechanism exceeding inscription: a constitutional practice harder than its text, entrenchment supplied by political culture where the document supplies only procedure. China exhibits inscription exceeding mechanism: a complete text whose operative political rules run substantially outside it, the enacted document functioning partly as program and partly as façade. Between the poles lie the ordinary cases, in which the gap is the daily object of constitutional politics—and the façade constitution, far from refuting the documental thesis, is its sociological confirmation: the social object exists as inscription but remains decoupled from the real mechanism of the State, a 'dormant' object whose awakening or definitive sleep is decided by struggle, not by text. Constitutional sociology, on this view, is precisely the science of that gap: of the conditions under which inscriptions acquire, keep or lose their grip on mechanisms.

The grip of inscription on mechanism has a name in political science: state capacity—the administrative, fiscal and coercive ability of the constituted system actually to execute what its supreme inscription prescribes. The variable cuts across the typologies of this article. Rights catalogues of identical wording deliver incommensurable realities depending on the courts, registries, police and budgets that stand behind them; the endurance data suggest that constitutions survive not by textual perfection but by the continuing interest of organized actors in running the mechanism they prescribe; and the most instructive failures are those in which an ambitious inscription outruns capacity—programmatic social rights without fiscal machinery, secession clauses without arbitration machinery, autonomy regimes without administrative substance—leaving a documental shell whose unredeemed promises then feed the delegitimation of the whole order. Sociologically, therefore, the founding inscription should be modeled

not as a command but as a standing claim on capacity: each clause is a draft drawn on the State's future ability to perform, and constitutional performance is the rate at which those drafts are honored.

Here the ideological analysis announced in §2.2 finds its place. Every founding inscription carries a constitutional ideology in Romero's multidimensional sense: a worldview (the dignity of the person; the classless society; the plurinational cosmos; the Islamic order), a community (the nation; the nations, nationalities and peoples; the umma), a structure of power relations and legitimacy narratives, symbolic structures and normative objectives. The method obliges three separations. The ideological claims of a constitution (its self-description) must be separated from the empirical evidence about its operation (the mechanism actually running) and from its doctrine (what its interpreters hold it to require). South Africa's reparative narrative, China's programmatic narrative, Iran's theonomic narrative and France's republican-laicist narrative are, in this respect, methodologically identical objects—multidimensional ideological systems inscribed at the foundation—whatever one's normative judgment of each; and in every case the sociologist's question is the same: which components of the inscribed ideology are load-bearing in the mechanism, and which are ornamental? Treating constitutional language as ideologically neutral is the one error this framework renders impossible.

In the secular age, finally, the constitution inherits from religion the provision of stable frameworks against the privatization of expectations. Where De Botton observes that modern institutions train specialists but 'do not teach one how to live', the constitution assumes the residual task of fixing the common horizon of values—dignity, equality, solidarity; or harmony, or ubuntu—upon which the other institutions operate. That this horizon differs across traditions is not an embarrassment for the theory but its comparative payoff: the founding inscription is the general form; what each community inscribes in it is the community's particular answer to the shared human condition.

9. ANTHROPOLOGICAL ANALYSIS

Anthropologically, the constitution is also a symbolic artifact: it produces the 'we' of the imagined community (Anderson) and administers functions that De Botton describes as proper to rite. Preambles are its symbolic core. The invocation of the divine—preserved or secularized—reveals the religious inheritance of the founding act:

"Im Bewußtsein seiner Verantwortung vor Gott und den Menschen... — Conscious of their responsibility before God and men..."²⁶

"In the Name of the Most Holy Trinity, from Whom is all authority and to Whom, as our final end, all actions both of men and States must be referred..."²⁷

Switzerland opens its preamble with 'Au nom de Dieu Tout-Puissant!' ('In the name of Almighty God!'), while the Andean charters invoke the Pachamama, the Saudi Basic Law rests the order on the Qur'an and Sunna, and the Ethiopian preamble convenes not one people but many. In every case the preamble fulfills the anthropological function of rite: it fixes sensory and symbolic anchors, produces transcendence (the community that endures beyond its members), and collectively processes the passage—the founding as a people's 'rite of passage'. The anthems, oaths of investiture, festivals and symbols that constitutions consecrate are the 'costly signals' that, with Anderson and De Botton, sustain intra-group cooperation.

The world tour adds three anthropological deepenings. First, the dual-text foundation: the Treaty of Waitangi shows a founding inscription that carries, inside itself, two communities' understandings of the same act in two languages—the 'we' it produces is constitutively bicultural, and its interpretation is a permanent ritual of encounter between them. Second, the incorporated ethic: ubuntu in South African jurisprudence and suma qamaña in the Bolivian text show founding inscriptions adopting the other's anthropology—personhood-through-others, living-well-in-community—as the order's own self-description, the strongest symbolic form recognition can take. Third, the sacralization of the secular:

²⁶ Basic Law of the Federal Republic of Germany (1949), Preamble.

²⁷ Constitution of Ireland (1937), Preamble.

Japan's untouched art. 9 and the German cult of dignity show that enacted, expressly secular inscriptions can acquire the phenomenology of the sacred—untouchability, veneration, taboo—confirming De Botton's thesis in the constitutional register: the functions of the religious do not disappear with religion; they migrate into the founding inscription, which is why constitutional conflicts so often exhibit the emotional grammar of sacrilege and schism. Anderson's three institutions of imagination—the census, the map and the museum—have, moreover, precise constitutional correlates. The census is constitutionalized wherever the founding inscription enumerates its peoples and languages: South Africa's eleven official languages, Bolivia's thirty-six recognized nations, India's scheduled languages and scheduled tribes, Ethiopia's very constituent formula—the constitution counting, and thereby partly creating, the collectivities it will govern. The map enters through the territorial articles—indivisibility clauses, federal boundaries, the entrenched integrity of the State in Turkey's art. 3—which convert cartography into founding text. And the museum—the curated national past—inhabits the preambles themselves: Kenya honouring 'those who heroically struggled to bring freedom and justice to our land', South Africa honouring 'those who suffered for justice and freedom', Ireland's 'heroic and unrelenting struggle', China's preamble narrating a century of revolution. The founding inscription, in other words, does not merely presuppose Anderson's imagined community; it operates the three machines that imagine it. Here the anthropological register discloses what the ontological one had already implied: the founding inscription does not merely record a pre-existing people; it performs the people into being and gives it the symbolic means to recognize itself across time.

10. INSTITUTIONAL COMPARISON

The following table synthesizes how jurisdictions from every continent and every major legal tradition inscribe the vectors of the thesis: the founding act, the technology of intangibility, and the recognition of the other. Functions, not labels, are compared, in accordance with the principle that constitutional comparison must attend to practice and not to text alone.

Jurisdiction (tradition)	Founding act	Intangibility (technology)	Recognition of the other
Germany, 1949 (civil law)	Preamble before 'God and men'	Eternity clause, art. 79(3) (textual)	Universal dignity (art. 1)
France, 1958 (civil law)	One and indivisible Republic	Republican form, art. 89 (textual)	Laïcité as common framework (art. 1)
United States, 1787 (common law)	'We the People... ordain and establish'	Aggravated amendment, art. V (procedural)	Equality amendments (XIV)
United Kingdom (common law)	Distributed: statutes, precedent, convention	Convention and continuity (ritual)	Devolution; multinational union
India, 1950 (Hindu / common law)	'We, the People of India... adopt, enact'	Basic structure doctrine, Kesavananda 1973 (doctrinal)	Personal laws; SC/ST guarantees; art. 17
Japan, 1946 (East Asian)	Popular sovereignty after defeat	Art. 9 never amended (ritual)	Pacifism as identity (art. 9)
China, 1982 (East Asian / socialist)	Programmatic preamble	Party leadership entrenched; text follows mechanism	Recognized nationalities; regional autonomy
Russia, 1993 (civil / post-socialist)	'We, the multinational people' after 1991 rupture	Chs. 1, 2, 9 reserved to Constitutional Assembly (structural)	Multinational people; republics and languages (art. 68)
Israel (Talmudic / mixed)	Declaration 1948; Harari 1950: distributed Basic Laws	Judicially declared supremacy, Migdal 1995 (doctrinal)	'Jewish and democratic' tension; 2018 Nation-State Law
Saudi Arabia, 1992 (Islamic)	Basic Law under Qur'an and Sunna (art. 1)	Revealed inscription: absolutely unamendable	Dhimma-derived and residency statuses
Iran, 1979 (Islamic / civil)	Islamic Republic by referendum	Art. 4: Islamic criteria over all law (doctrinal-clerical)	Recognized religious minorities (art. 13)

Jurisdiction (tradition)	Founding act	Intangibility (technology)	Recognition of the other
Egypt, 2014 (Islamic / civil)	Revolutionary preamble	Art. 2: shari'a principles as principal source	Christian and Jewish personal status (art. 3)
South Africa, 1996 (mixed / African)	Constitution as 'supreme law'; healing	Founding values, art. 1; s. 74 (textual)	Ubuntu (Makwanyane); 11 languages
Kenya, 2010 (African / common law)	'We, the people of Kenya' by referendum	Supremacy, art. 2; referendum entrenchment	Culture as foundation (art. 11); traditional justice (art. 159)
Ethiopia, 1995 (African / civil)	'We, the Nations, Nationalities and Peoples'	Deliberately soft on union: art. 39 secession	Sovereignty of the peoples (art. 8)
Australia, 1901 (common / chthonic)	Imperial statute; federation referenda	Double-majority referendum, s. 128	Mabo 1992; constitutional silence (2023 referendum)
New Zealand (common / chthonic)	Treaty of Waitangi 1840, dual text	Uncodified; Treaty principles (doctrinal-ritual)	Tino rangatiratanga; te Tiriti in Māori
Canada, 1867/1982 (common / civil / chthonic)	Patriation 1982	Amending formulas, Part V	S. 35: aboriginal and treaty rights affirmed
Mexico, 1917/2012 (civil law)	'Will of the Mexican people'	Reinforced rigidity, art. 135 (procedural)	Pluricultural composition (art. 2)
Colombia, 1991 (civil law)	Pluralist nation	Substitution doctrine, since C-551/2003 (doctrinal)	Ethnic and cultural diversity (art. 7)
Ecuador, 2008 (civil / chthonic)	Invocation of the Pachamama	Reform vs. substitution (textual-doctrinal)	Nature as subject (art. 71)
Bolivia, 2009 (civil / chthonic)	Plurinational State	Rigidity and constitutional bloc	Indigenous principles in indigenous languages (art. 8)

Read across the rows, the table shows convergence in function beneath divergence in form: every order performs a founding act, hardens a core, and takes some stance—from denial through subordination to reconciliation—toward its internal others. Read down the columns, it shows that the same function is discharged by radically different legal materials: the founding act may be an enactment, a treaty, a revelation or an accumulation; the hardening may be a clause, a doctrine, a procedure or a rite; recognition may inhabit a dignity clause, a personal-law system, a land-rights jurisprudence or the very plurality of the constituent subject. This is exactly the pattern the founding-inscription thesis predicts, and exactly the pattern a purely textual comparison would miss.

11. CRITICAL DISCUSSION

Four objections test the hypothesis and, in being resolved, refine it.

First: uncodified constitutions (the United Kingdom, New Zealand, in its own way Israel) appear to lack the single inscription the thesis requires. The reply distinguishes a single support from a distributed support: the British founding inscription exists, dispersed across historic statutes, precedents and firmly settled conventions; there is a record, though a plural one. The thesis does not require that the founding inscription occupy one document, only that it be inscribed and retrievable; a distributed inscription is still an inscription. This is also where Glenn's account earns its place: the common-law constitution is the paradigm of a tradition that transmits normative information through iterative practice rather than through a single codifying act, and it is fully intelligible as a founding inscription in the extended, distributed sense—as are, at the far end of the same continuum, the chthonic foundations of §5.2, whose support is memory, rite and land.

Second: 'façade constitutions' display splendid texts without force. Far from refuting the thesis, they confirm it: the social object exists as inscription but remains decoupled from the real mechanism of the State. A full constitution requires both—to be inscribed and to move the machinery of the State; when

there is only text, we have a 'dormant' social object, and the gap between validity and efficacy becomes the proper object of constitutional sociology. The comparative tour supplied the systematic version of this reply: the inscription-mechanism relation is a variable, running from Japan's mechanism-beyond-text to China's text-beside-mechanism, and the classical typology of normative, nominal and semantic constitutions is the doctrinal registration of that variable. The distinction between the inscribed order and the operative mechanism is thus not a weakness of the theory but one of its diagnostic instruments.²⁸

Third: the revealed foundations of the Islamic tradition break the recursive loop—the inscription does not institute its own author—and might therefore seem to fall outside the category. Section 5.4 developed the reply: the four functional marks persist, redistributed between a first-degree revealed inscription (bearing sovereignty and absolute unamendability) and a second-degree enacted one (bearing the recursivity and generativity of the State's machinery, under repugnancy control). The refinement is real: the thesis must henceforth speak of the architecture of founding inscriptions, single- or multi-level, rather than assuming the one-document, one-level case. But the refinement strengthens rather than weakens the theory, for it reveals a structural kinship the doctrinal map conceals: every order that treats its deepest layer as found rather than made—revealed law, natural law, the basic structure 'discovered' by a court, dignity declared inviolable rather than enacted as inviolable—is performing the same operation: placing the foundation beyond the reach of the founded.

Fourth: contemporary documediality displaces the social record toward private platforms, generating an asymmetry between users who produce documental surplus value and platforms that capture it. If society is founded on the record, and the record is increasingly held, formatted and moderated by private infrastructures, then the founding inscription faces a rival of a new kind: not another State's inscription, nor an older tradition's, but a privately owned recording apparatus on which ever more of social life is inscribed. Emergent digital constitutionalism—platform-regulation regimes, data-rights charters, proposals for the constitutionalization of the digital sphere—can be read as the attempt of the founding inscription to recover sovereignty over a record migrating outside the State. The constitutional question of the coming decades, in the vocabulary of this article, is who inscribes—and who controls the support on which the social object of the political community is written. The first institutional responses are already legible in the comparative record: the European Union's platform regulation asserting public norms over private moderation; data-protection charters raising the record itself to the rank of protected right; national judgments extending constitutional guarantees horizontally into platform space; and the doctrinal movement that speaks, precisely, of digital constitutionalism—founding-inscription language migrating to the infrastructures of inscription. Whether these responses amount to recapture or merely to commentary is, on the theory defended here, the constitutional question of the documedia age. In all four cases the methodological discipline consists in not collapsing the levels: distinguishing text from practice, validity from efficacy, social from natural ontology, and the ideology inscribed from the mechanism running.

12. CONCLUSIONS

A national constitution is a social object of the type founding inscription: sovereign, recursive, generative and maximally unamendable. The comparative test has generalized each term. The inscription may be enacted, revealed or distributed, and its support may be parchment, Basic Laws, precedent, ritual memory or the land itself. The recursivity may be single-level, as in the revolutionary model, or layered, as where an enacted constitution operates under a revealed one. The generativity is everywhere the same: from the founding inscription flow the organs, statutes and rights of the order. And the maximal hardness is achieved by three interchangeable technologies—clause, doctrine, rite—whose equivalence only a functional comparison can see.

This ontological characterization is not an end in itself: it explains how communities institutionalize their answers to the human condition, and the world's traditions show those answers in their full variety.

²⁸ K. Loewenstein, *Political Power and the Governmental Process* (Chicago: University of Chicago Press, 1957) [Spanish ed. *Teoría de la constitución* [Theory of the Constitution], Barcelona: Ariel, 1976], on the normative, nominal and semantic typology of constitutions.

Mortality and grief are inscribed in the constitutional memory of victims and in the mandate to heal the divisions of the past; the arrogance of power is contained by eternity clauses, by basic structures, by the sedimented untouchability of a pacifist article; fragility is housed in social rights and in ubuntu's personhood-through-others; the need for recognition of the other is answered—where it is answered—by dignity clauses, personal laws, treaty principles, section 35, article 159, and cosmovisions inscribed in their own languages; and the need for meaning is administered in preambles that invoke God, the Trinity, the Pachamama, the Nations, Nationalities and Peoples, or simply We the People. Ontology, sociology and anthropology are thus tied into a single record, differently in each tradition and identically in form.

The human condition and the nature of the constitutional social object turn out, in the end, to be two faces of the same fact: the constitution—enacted or revealed, gathered in one document or dispersed across a tradition's memory—is the artifact through which the human inscribes itself in order to endure. To ask what kind of object a constitution is, and to ask how a community stabilizes its responses to finitude, fragility, power and the other, is to ask a single question; and the founding inscription, in the plural architecture this comparison has disclosed, is its answer.

A closing word on method. The itinerary followed here—ontology first, then the traditions, then the analytical registers—was not ornamental. Only an explicit ontology of the constitutional object made the traditions comparable without reduction: because the *tertium comparationis* was functional (capture, hardness, generativity, recognition) rather than doctrinal, the Dreaming and the Grundgesetz, the Digest and the Basic Laws, the Guardian Council and the basic structure could be held in one frame without pretending they are the same thing. And only the discipline of separated registers—never collapsing what exists into what is known, what is known into how it functions, or any of these into what ought to be—kept the comparison from sliding into either triumphalism (the Western model as *telos*) or relativism (every order incomparable). If the category of the founding inscription proves useful beyond this article, it will be as that kind of instrument: a concept precise enough to be tested, and capacious enough to be tested everywhere.

13. QUESTIONS FOR FUTURE RESEARCH

The hypothesis, by its very form, invites empirical contrasts with the open data of the Comparative Constitutions Project. (i) If 'hardness' increases with the root character of a norm, is there a systematic correlation between normative supremacy and the aggravation of amendment procedures, and between the centrality of a content and its declaration of intangibility—and does the correlation hold across the three technologies of hardness, textual, doctrinal and ritual? (ii) Does the decoupling of inscription from mechanism predict the instability or the 'façade' character of a constitution, measurable by its duration and its rate of compliance? (iii) How does documediality reconfigure the sovereignty of the constitutional record, and what forms of digital constitutionalism emerge to recover it? (iv) Can a constitutional form house the plurality of frameworks—the *Nepantla*, the dual text of Waitangi, the two-level Islamic architecture—without dissolving into the relativism that negative realism warns against? (v) Can the relations between enacted and inherited inscriptions—denial, subordination, reconciliation—be operationalized as variables, and their dynamics modeled computationally, treating constitutional orders as complex adaptive systems in which the founding inscription is the slow variable and the mechanism the fast one? These questions convert a philosophical reflection into a program of comparative research—one especially suited to computational and quantitative constitutional methods, which can test, at scale, whether the ontological features postulated here leave measurable traces in the world's constitutional texts and in their observed performance.

SYNOPSIS OF THE ARGUMENT

The following table maps the article section by section, linking each part to its guiding question, its central concept(s), and the claim it establishes. It is offered as a reader's guide to how the ontological,

epistemological, sociological and anthropological registers combine, across the world's legal traditions, into a single account of the constitution as founding inscription.

Section	Guiding question	Core concept(s)	Claim established
1. Research question & thesis	What kind of social object is a national constitution, and how does it institutionalize a community's answers to the human condition?	Founding inscription; social object; recursion; generativity; unamendability	A constitution is a sovereign, recursive, generative, maximally unamendable inscription that stabilizes a community's answers to mortality, fragility, power and the other.
2.1 Social object (Ferraris)	What is the mode of existence of the social?	social object = inscribed act; trace–record–inscription; unamendability	The social exists as durable, opposable record; the constitution is the summit of the ichnological hierarchy.
2.2 Material system & ideologies (Bunge, Romero)	What turns a population into a State, and how are constitutions ideological?	CESM (composition, environment, structure, mechanism); emergence; multidimensional ideology	The constitution is the mechanism converting an aggregate into a system, and an ideology-bearing object to be analyzed by components.
2.3 Legal traditions (Glenn)	How do orders relate to the traditions they transmit?	Normative information; capture–application–recapture; inclusiveness; reconciliation	The founding inscription crystallizes one or more traditions and can reconcile plural ones in a multivalent logic.
2.4 Three axes of alterity (Todorov)	How is the other recognized or denied?	Axiological, praxeological and epistemic axes; regimes of communication	Full recognition requires affirming the other's value, organizing coexistence, and inscribing the other in its own words.
2.5 Imagined community & religion (Anderson, De Botton)	How is the "we" produced and meaning supplied?	Print capitalism; census, map, museum; residual religious functions; costly signals	The constitution is the supreme inscription through which the nation imagines itself and inherits religion's framework-giving functions.
3. Historical background	What does the modern enacted constitution inherit?	Cosmological → secular foundation; recapture; diffusion of the single-document form	The founding act persists through secularization; the enacted form is superimposed on older inscriptions worldwide.
4. Comparative analysis (the texts)	Do constitutional texts exhibit the postulated features?	Self-institution; eternity clauses; generativity; recognition	US/South Africa (self-institution); Germany/France/Italy/Brazil/Turkey/Portugal/Czechia (intangibility); France/Mexico (secular framework); Colombia/Ecuador/Bolivia (recognition).
5.1 Civil & common law	Are the two Western traditions themselves founding inscriptions?	Enacted code vs. distributed practice; Marbury; judicial review	Both span the variable: one foundation gathered in a hardened document, one dispersed through self-transmitting practice.
5.2 Chthonic tradition	Can foundation exist without a written support?	The Dreaming; oral transmission; Mabo; Yorta Yorta; native title	The land itself is the support; the modern constitution's reconciliatory capacity is measured by how much of it it can carry.

Section	Guiding question	Core concept(s)	Claim established
5.3 Talmudic tradition / Israel	Can a founding inscription be assembled retroactively?	Textual community; Basic Laws; Harari; Migdal “constitutional revolution”	A distributed, judicially consolidated inscription whose maximal hardness is doctrinal rather than textual.
5.4 Islamic tradition	What happens when the inscription is revealed, not enacted?	Revealed capture; fiqh; repugnancy clauses; two-level architecture	The recursive loop breaks from above; the four marks persist across a first-degree revealed and a second-degree enacted inscription.
5.5 Hindu tradition / India	Can maximal hardness exist without any clause?	Basic structure doctrine; Kesavananda; identity conditions of the object	Hardness without text: an unamendable core sustained entirely at the level of doctrine and recapture.
5.6 East Asia & socialist tradition	How do rite and program entrench (or fail to)?	li over fa; Japan’s art. 9; China’s programmatic text; semantic constitutions	Hardness by ritual (Japan) and inscription decoupled from mechanism (China): two poles of the text–mechanism relation.
5.7 Sub-Saharan Africa	How is inherited custom reconciled with the enacted order?	Ubuntu; Makwanyane; Kenya art. 159; Ethiopia art. 39; Nigerian plurality	Reparative foundation incorporating custom: subordination in validity, incorporation in function, negotiated boundaries.
5.8 Beyond the State	Is foundation essentially statal?	Treaties as foundation; Van Gend, Costa; primacy; Solange counter-limits	The two-level architecture reappears in secular form: national orders operating under supranational inscriptions.
5.9 Comparative synthesis	What generalizes across the tour?	Mode of inscription; technology of hardness; mode of relation	Inscription may be enacted/revealed/distributed; hardness textual/doctrinal/ritual; relation denial/subordination/reconciliation.
6. Ontological analysis	What is a constitution, ontically?	Physical vs. ideal vs. social object; social unamendability	A social object—dependent on subjects, independent of any one—engineered to resist amendment as if strongly real.
7. Epistemological analysis	How is a constitution known and interpreted?	Weak vs. strong textualism; validity vs. efficacy; originalism vs. living tree	Meaning is bound to inscription yet limited by an unamendable core; interpretation is recapture within identity conditions.
8. Sociological analysis	How does the object operate on collective life?	Endostructure/exostructure; emergence; dormant objects; inscribed ideology	The constitution operates emergence and subsystem governance; a valid but inefficacious text is a “dormant” object.
9. Anthropological analysis	How does the object bear meaning?	Preambles as rite; costly signals; census, map, museum; sacralization of the secular	The inscription performs the people into being and operates the three machines that imagine the community.
10. Institutional comparison	Do orders across all traditions converge in function?	Founding act; intangibility technology; recognition (21 jurisdictions)	Convergence in function beneath divergence in legal materials, visible only to a functional comparison.
11. Critical discussion	Do the hard cases refute the thesis?	Distributed inscription; façade constitutions; revealed foundation; documediacity	Uncodified, façade, revealed and digital cases refine rather than refute the thesis by keeping levels distinct.

Section	Guiding question	Core concept(s)	Claim established
12. Conclusions	What single fact do the registers disclose?	Plural architecture of the founding inscription; ontology–sociology–anthropology in one record	The human condition and the constitutional object are two faces of one fact, differently in each tradition and identically in form.
13. Future research	What can be tested empirically?	Hardness–supremacy correlation; inscription–mechanism decoupling; digital constitutionalism; CAS modeling	A computational/quantitative program treating constitutional orders as complex adaptive systems.

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